

25STCV15546 25STCV15546

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-08-06

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Case Number: 25STCV15546 Hearing Date: August 6, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

JAMES

FOURR, et al.,

Plaintiffs,

vs.

LISA

FOURR, et al.,

Defendants

Case No.:

25STCV15546

Hearing

Date:

August 6, 2026

[TENTATIVE]

ORDER GRANTING UNOPPOSED MOTION TO BE
RELIEVED AS COUNSEL

I. BACKGROUND

Defendant Lisa Fourr ("Lisa") allegedly wrongfully acted to block Plaintiff James Fourr ("James") request, made via James's wife Plaintiff Paulette Fourr ("Paulette"), to transfer his IRA from Lisa's control at Defendant OSAIC Wealth, Inc. ("Osaic") to a new financial team. Plaintiffs sued Defendants for ten causes of action, including financial elder abuse.

On June 25, 2026, James's attorney, Elan Darvish, filed this instant motion to be relieved as counsel for James. No opposition has been filed to date.

II. LEGAL STANDARD

A

motion to be relieved as counsel requires: (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)). (Cal. Rules of Court, rule 3.1362; Code Civ. Proc., § 284(2).)

The

court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

III. DISCUSSION

Counsel submitted completed MC-051, MC-052 and MC-053 forms in compliance with the California Rules of Court rule 3.1362 requirements.

Counsel submitted a declaration stating that there has been irreconcilable breakdown in the attorney-client relationship and attorney-client communication. (Mot., Darvish Decl. ¶ 3.) Counsel asserts counsel served James at his last known address via mail, with return receipt requested. (MC-052 ¶ 3(b)(1)(a).) Counsel confirmed James's address via Paulette within the past 30 days. (MC-052 ¶ 3(b)(1)(d).)

Counsel has served all parties who have appeared in this action, including James, with this motion. Counsel need not serve Paulette, as counsel represents Paulette.

There is no indication of undue prejudice to James from the Court granting this motion. This matter has no currently set trial date, leaving James sufficient time to seek new counsel prior to the end of discovery and the start of trial.

IV. CONCLUSION

James's Counsel's Motion to Be Relieved as Counsel is therefore GRANTED. Counsel will be relieved upon filing proof of service upon the client of the Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (Judicial Council form MC-053).

Counsel is ordered to give notice.

DATED:
August 6, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer

after reading this tentative ruling to see if they can reach an agreement.

- If a party intends to submit on this

tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless all parties submit by email to this

tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at

hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.